Filing # 259238377 E-Filed 10/14/2026 11:40:53 PM

IN THE DISTRICT COURT OF APPEAL OF THE STATE OF FLORIDA
SIXTH DISTRICT

Appellate Case No.: 6D25-3120
L.T. Case No.: 2024-CA-109

GLENDA GONZALEZ, individually, and as a Beneficiary of the Guadalupe Gonzalez and Eva S. Gonzalez Trust dated June 28, 2017,

Plaintiff/Appellant,

v.

JOSUE DANIEL GONZALEZ, individually, and as Trustee of the Guadalupe Gonzalez and Eva S. Gonzalez Trust dated June 28, 2017, and REBECCA GONZALEZ,

Appellees,

and

AZELYA MONIQUE HERRERA, Nominal Defendant.
_____/

APPELLANT'S INITIAL BRIEF

On Appeal from the Circuit Court of the Twentieth Judicial Circuit, in and for Collier County, Florida

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PRELIMINARY STATEMENT

This appeal challenges the Final Judgment entered for Appellees after a non-jury trial in a dispute over the Guadalupe Gonzalez and Eva S. Gonzalez Trust dated June 28, 2017 (the "Trust"). Appellant, Glenda Gonzalez ("Glenda"), is a beneficiary of the Trust and the Settlors' daughter. Appellees are Josue Daniel Gonzalez ("Daniel"), the Settlors' son and the Trustee, individually and as Trustee, and his wife, Rebecca Gonzalez ("Rebecca"). Azelya Monique Herrera ("Azelya[1]") is Glenda's daughter and a nominal defendant.

The Trust gifted the Settlors' interests in real property at 102 S. 4th Street, Immokalee, Florida (the "Property")[2] to Daniel, subject to an express restriction preserving the right of Glenda and Azelya to operate a beauty salon on a portion of the Property, rent-free. After

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[1] Hereinafter referred to as “Azelya”, she is Glenda’s daughter and named as a Nominal Defendant below as she operates the beauty salon with Glenda and is included in the restriction that is the subject of this appeal. She has not been made a party to this appeal because her occupancy rights are coextensive with Glenda.

[2] At times in these proceedings, the Property has been referred to as the Fourth Street Property or the 102 Property. It is the only real property that is at issue in this appeal, and consequently, it will be referred to as "the Property" throughout this Brief.

the Settlors died, Daniel deeded the Property from the Trust to himself and then to Rebecca, and Rebecca immediately moved to evict Glenda and Azelya. The trial court entered judgment for Appellees, ruling, among other things, that Rebecca is not bound by the restriction and that the Trust is unambiguous. This Court should reverse.

References to the Record on Appeal are cited as "R. ___"; references to the trial transcript are cited as "T. ___."

STATEMENT OF JURISDICTION

This is an appeal of a final judgment that disposed of all claims among the parties in a civil trust dispute.

This Court has jurisdiction pursuant to Florida Rule of Appellate Procedure 9.030(b)(1)(A) and Florida Rule of Appellate Procedure 9.110.

The Final Judgment was rendered on November 6, 2025. (R. 909-915.)

Rendition was tolled by Appellant's timely, authorized motion for rehearing served on November 21, 2025 (R. 928-941), and the time for appeal ran upon the trial court's rendition of its Order Denying Plaintiff's Motion for Rehearing on December 9, 2025 (R. 951-952).

Appellant timely invoked this Court's jurisdiction by filing a notice of appeal within 30 days of that order. (R. 953-975.)

STATEMENT OF THE ISSUES

I. Whether the Trust, read as a whole, makes Glenda's right to operate a beauty salon binding on Daniel and his successors and assigns, including Rebecca.

Suggested Answer in the Affirmative.

II. Whether, if the Trust is deemed ambiguous and subject to more than one interpretation, the extrinsic evidence introduced at trial establishes that the Settlors intended the Restriction to bind Daniel and his successors and assigns.

Suggested Answer in the Affirmative.

III. Whether the Trust grants Glenda an enforceable possessory right - a covenant running with the land or a vested determinable life estate - enforceable against Rebecca.

Suggested Answer in the Affirmative.

STATEMENT OF THE CASE AND OF THE FACTS

The Settlors, Guadalupe Gonzalez ("Guadalupe") and Eva S. Gonzalez ("Eva"), were husband and wife and jointly owned four contiguous parcels of commercial real property commonly known as the “Property”, legally described as Lots Six, Seven, Eight and Nine, Block 3, Carson's Subdivision, Collier County, Florida. (R. 909-910; R. 715, 727-730 (Trust, Admitted Ex. A; Deeds, Admitted Ex. B, C, & D).)

The Property was improved with a structure on one parcel, and the other three were used to operate a flea market. During their lives, Guadalupe and Eva gifted a partial interest in the Property to their son, Josue Daniel Gonzalez ("Daniel"), and allowed their daughter, Glenda Gonzalez ("Glenda"), and their granddaughter, Azelya Monique Herrera, to operate a beauty salon in one commercial space on the ground floor of the structure, known as Unit 3. (T. 32-36; R. 715-716.)

On June 28, 2017, Guadalupe and Eva formed the Guadalupe Gonzalez and Eva S. Gonzalez Trust. (R. 910.) Pursuant to Article II(B) of the Trust, Daniel was to receive the Trust's interests in the

Property following his parents' deaths, expressly conditioned on the requirement that Daniel allow Glenda and Azelya to continue to operate the beauty salon. (R. 715-716.) The relevant provision of the Trust states:

> 3. Any interest owned in real property located at 102 S 4th Street, Immokalee, Florida, more specifically described as: Lots Six (6), Seven (7), Eight (8), and Nine (9), in Block 3, all in CARSON'S SUBDIVISION according to the Plat thereof, as recorded in Plat Book 2, Page 40, of the public records of Collier County, Florida, Parcel No. 025581000009
> shall be specifically distributed outright to Grantors' son, JOSUE DANIEL GONZALEZ, subject to the restriction that as long as he shall own the real property he shall allow Grantors' daughter, GLENDA GONZALEZ and/or Grantors' granddaughter, AZELYA MONIQUE HERRERA, to continue to operate a beauty salon or similar business, rent-free, on the portion of the premises currently being operated by GLENDA GONZALEZ as a beauty salon. However, Grantors' daughter, GLENDA GONZALEZ and Grantors' granddaughter, AZELYA MONIQUE HERRERA, shall be responsible to pay all other expenses in connection with their operation of the business and should they fail to do so and if by virtue of their default the real property becomes in jeopardy of the filing of a lien or encumbrance, Grantors' son, JOSUE DANIEL GONZALEZ, shall be entitled after furnishing them with seven (7) days written notice to quit and opportunity to cure, to enforce legal remedies to terminate their right of occupancy and to have the business of Grantors' daughter GLENDA GONZALEZ and Grantors' granddaughter, AZELYA MONIQUE HERRERA, removed from the premises. Should Grantors' son fail to abide by the restriction to allow Grantors' daughter GLENDA GONZALEZ and Grantors'

> granddaughter, AZELYA MONIQUE HERRERA a right of occupancy in the portion of the property upon which the beauty salon is located, after furnishing JOSUE DANIEL GONZALEZ, or his successors or assigns with seven (7) days written notice and opportunity to cure, Grantors' daughter GLENDA GONZALEZ and/or Grantors' granddaughter, AZELYA MONIQUE HERRERA, shall be entitled to enforce legal remedies to preserve their right of occupancy. In the event that Grantors' son, JOSUE DANIEL GONZALEZ predeceases the Grantors, or dies as a result of a common disaster with the Grantors, this specific distribution to him of the above described real property shall pass, per stirpes, to his lineal descendants, subject to the right of occupancy set forth above and further subject to the age restrictions as set forth below.
>
> (Emphasis added). (R. 715-716.)

Guadalupe predeceased Eva, who then passed on November 11, 2022. (R. 67, 164.) Upon Eva's death, Daniel became the sole trustee of the Trust. (R. 720 (Admitted Ex. A).) On July 27, 2023, Daniel, as Trustee, executed a Trustee Deed conveying the Property from the Trust to himself individually. (R. 731-732 (Admitted Ex. E) [3].) On

[3] While the deed was appropriately described and admitted into evidence at trial as Exhibit E by agreement, admitted Exhibit E as part of the trial record contains a different deed granting a different interest in a real property to a third sibling, Mary Grace Zetina, that is not the subject of any current dispute. The conveyance comprising the chain of title are established by the pleadings. The First Amended Complaint, paragraph 14, alleges the conveyances and attaches the deeds as its Exhibit B. (R. 69-70; R. 100-101.) Defendants' Answer to the First Amended Complaint, paragraph 14, admits those allegations. (R. 165.)

September 14, 2023, Daniel conveyed the Property to his wife, Rebecca Gonzalez ("Rebecca"), by Warranty Deed for nominal consideration.[4] (R. 733-734 (Admitted Ex. F).)

Daniel testified at trial that he knew that, as long as he owned the Property, Glenda had the right to maintain her hair salon, and that he nonetheless deeded the Property to Rebecca because he "wanted to":

> Q. Right. Why did you do that?
>
> A. Because I wanted to.
>
> Q. And why did you want to do it?
>
> A. The process was to -- number one, she can go live her life, do her thing where she wants to, leave us alone. I would maximize the possibilities of the property that came to me, and then we sell it and be done with everything.
>
> (T. 81:6-25.)

He acknowledged that his parents intended Glenda's right to continue so long as he owned the Property:

> Q. . . . [A]t the time you read the trust when you were the trustee, you understood the provision within the trust which indicated that she had a right with her daughter to

[4] The Warranty Deed recites consideration of $10.00. (R. 733.) Rebecca testified at trial that she paid $20.00. (T. 164-165.)

> stay as long as she wanted to and maintain a hair salon; correct?
>
> A. I understood it to say as long as I owned it, I had to leave them there free, which did happen. After I no longer owned it, that's not up to me.
>
> Q. Okay. But you understood that's what your parents wanted; right?
>
> A. As long as I owned it, yes.
>
> (T. 83:11-84:9.)

Rebecca testified that she and Daniel agreed that Daniel would transfer the Property to her so that she, as owner, could remove Glenda:

> Q. . . . Was that the agreement that you and Daniel made? The agreement was that you would receive the deed from him, and then you would file the ejectment or the eviction action to get Glenda out, because you would then be the owner? Was that the deal the two of you made?
>
> A. It wasn't a deal. It wasn't a deal. It wasn't, like, a conspiracy or something. It was a decision. It was a discussion between a husband and wife.
>
> (T. 160:22-25, 161:1-14.)

When asked why the Property had to be transferred to her, Rebecca confirmed that the transfer was necessary to defeat Glenda's right to remain rent-free:

> Q. So, Ms. Gonzalez, why didn't your husband just take action to get Glenda Gonzalez out of the house? Why did the property need to be transferred to you to do it?

A. Because if he still owned it then she would still have to be there for free.

(T. 164:22-25.)

Q. . . . [W]hy did the property have to be transferred to you to accomplish that mission?

A. Because then if I owned the property and he didn't, then she would have no place to say, "I still have to stay here. I can do this. I can do that," and we would have to provide her a significant amount of space for free. When if she were to leave, then I could get paid. I could have income. I could generate income that would basically provide for us in the future.

(T. 165:1-25.)

Daniel's expert appraiser testified that the Fourth Street Property was worth approximately $950,000, and that Glenda's rent-free occupancy of Unit 3 for the life of the improvements reduced the Property's value by $215,000. (T. 80; T. 112-113; T. 124-125.) That valuation did not account for the income generated by the flea market operated on the three unimproved parcels.

Lynn Griffith, Esquire, drafted the Trust for Guadalupe and Eva. (R. 910.) She testified that the Settlors intended to gift the Property to Daniel subject to the "restriction" that he allow Glenda to maintain her beauty salon:

Q. So what is the restriction?

> A. Okay. To allow Glenda Gonzalez, or the granddaughter named, to continue to operate a beauty salon or similar business rent free.
>
> (R. 813 (Admitted Ex. U, Griffith Dep. 21:5-10).)

She testified that the Settlors intended Glenda to have a right of occupancy throughout her life, so long as Glenda paid the operating expenses and did not jeopardize the Property:

> Q. So do I understand the language of Paragraph 3 then, as you drafted it, to mean that as long as she was paying the bills and wasn't putting the property in danger of being lost, that throughout her life she would have the right to occupy a portion of the building to run her hair salon?
>
> A. Well, that's - that's the gist of that language, yes.
>
> (R. 814 (Admitted Ex. U, Griffith Dep. 22:7-13).)

Griffith further testified that the "successors or assigns" language meant that an assignee could be served with the notice of breach and that Glenda and Azelya retained the right to enforce their occupancy, and that the right of occupancy bound not only Daniel but his descendants:

> Q. . . . [B]y including the words "successors and assigns," wouldn't that mean that if he conveyed the property or assigned the property to someone, that Glenda would be able to serve the notice of breach upon the assignee to enforce her rights?

A. That would be the intent. I mean, that's how it's drafted. . . .

Q. . . . [T]his right of occupancy . . . [n]ot only was that right of occupancy binding upon Daniel, but if he predeceased the decedents, it was also to be binding upon his children; is that correct?

A. Yes.

Q. Okay. So it wasn't personal to Daniel, it was personal to Daniel or his descendents [sic] at the very least, correct?

A. Yeah. It would apply to he [sic] as well as his descendents [sic].

(R. 816, 852 (Admitted Ex. U, Griffith Dep. 24:3-15, 60:6-17).)

Griffith also testified that nothing in the Trust permitted Daniel to terminate the right by gratuitously transferring the Property to his wife, and that the restriction was intended to be enforceable throughout Glenda's lifetime regardless of who owned the Property:

Q. Now, is there any language in here that would allow Daniel to terminate the right of use by transferring the property gratuitously to his wife?

A. Yeah, I don't think, as a drafter, I would contemplate any possible thing that would happen and negate it, so I see that as a non-starter. . . . [T]here's nothing in here that says that he would have the right to transfer . . . but he got it subject to that restriction. . . .

Q. . . . [W]as it your intention when you drafted this . . . that this was going to run with the land? A. . . . I think it was intended to be enforceable, yeah.

Q. Throughout her lifetime?

A. Correct.

Q. Regardless of who the owner was?

A. Correct.

(R. 814-815 (Admitted Ex. U, Griffith Dep. 22:14-25, 23:1-10).)

Rebecca knew that Glenda operated the salon on the Property, and she knew before the transfer that Glenda and Daniel were disputing Glenda's right to remain; she did not inquire into that dispute:

> Q. . . . [P]rior to receiving the deed . . . [did] you ma[k]e any inquiry whatsoever about how it was that Glenda was able to occupy the building at the property? Did you do that?
>
> A. No, I did not. . . .
>
> Q. So you knew before you got the deed that she was arguing that she had a right to stay in the property; correct?
>
> A. Yes.
>
> Q. Okay. So what inquiry did you make between knowledge of her argument that she got to stay, and the time that you received the deed? . . .
>
> A. I didn't.
>
> Q. So basically you decided that you were not going to look into it; correct?
>
> A. Yes.
>
> Q. Okay. And that was a voluntary decision that you made; correct?
>
> A. Yes.

(T. 156:8-25, 157:1-9, 160:7-21.)

Immediately following the transfer, Rebecca served Glenda and Azelya with a notice demanding possession and later commenced eviction proceedings. (R. 735 (Admitted Ex. G); T. 166.)

Glenda commenced this action on January 15, 2024 (R. 1-3), and her operative First Amended Complaint sought enforcement of her possessory interest in the Property and asserted, among others, claims for breach of the Trust (Count I), declaratory judgment (Count V), and civil conspiracy (Count VI). (R. 67-113.) Daniel and Rebecca answered. (R. 164-165.)

After a non-jury trial on October 21, 2025, the trial court entered Final Judgment for the Defendants on all counts on November 6, 2025. (R. 909-915.)

On Count I (breach of trust, against Rebecca), the court ruled for Rebecca on the ground that she "is [not] a trustee to the Trust" and had no "general fiduciary obligations under the trust." (R. 911.) On Count V (declaratory judgment), the court found the Trust's terms "unambiguous," declined to adopt Glenda's interpretation, and found Rebecca not bound as a successor or assign. (R. 914.) The court reserved jurisdiction over attorney's fees. (R. 915.)

Glenda timely moved for rehearing on Counts I and V. (R. 928-941.) The trial court denied rehearing on December 9, 2025, rejecting Glenda's contentions that the Settlors intended a covenant running with the land or a life estate. (R. 951-952.) This appeal followed.

SUMMARY OF THE ARGUMENT

The trial court entered judgment for Rebecca on Count I on the single ground that she was not a trustee and owed no fiduciary obligations under the Trust. But Glenda never contended that Rebecca was a trustee. The dispositive question - whether Article II(B)(3) created a property interest that bound the Property in Rebecca's hands as Daniel's successor - the court never reached. That question, and the construction of the Trust on which it turns, are reviewed *de novo*.

Read as a whole, the Trust answers that question. It distributed the Property to Daniel subject to the restriction that, so long as he owned it, he allow Glenda to operate her beauty salon rent-free, and it made that restriction enforceable through a notice-and-cure mechanism directed expressly at "JOSUE DANIEL GONZALEZ, or his successors or assigns."

The cardinal rule of construction is to ascertain and give effect to the Settlors' intent, gleaned from the four corners of the instrument and giving effect to every provision. The "successors or assigns" enforcement language can mean only one thing: the restriction binds those who succeed Daniel in ownership, because a

right enforceable against a successor who owed no obligation would be a nullity. Under no circumstance did the Trust create a merely personal covenant.

Even if the Trust is deemed ambiguous, the result is the same. The drafter herself testified that the relevant language admits of more than one interpretation, which opens the door to parol evidence; and all of the extrinsic evidence introduced at trial establishes that the Settlors intended Glenda's right to be enforceable throughout her operation of the salon, regardless of who owned the Property.

The right the Trust confers is therefore a legally recognized, successor-binding possessory interest - a covenant running with the land or a vested determinable life estate - and either characterization is enforceable against Rebecca. The restriction satisfies all three elements of a covenant running with the land: it touches and concerns the land, the Settlors intended it to run, and Rebecca took with notice of it. It independently creates a vested determinable life estate that terminates only upon Glenda's death or her abandonment of the salon, leaving Daniel with a remainder he could convey only subject to Glenda's possessory right.

Accordingly, the Final Judgment should be reversed and the cause remanded with directions to recognize and enforce Glenda's right to continue operating her beauty salon on the Property as against Rebecca.

STATEMENT OF PRESERVATION

Issue I. The issue whether the Trust, read as a whole, makes Glenda's right to operate a beauty salon binding on Daniel and his successors and assigns, including Rebecca, was raised in the First Amended Complaint (Counts I and V) (R. 67-113), argued at trial (T. 188-207), discussed in Appellant's Trial Memorandum of Law (R. 896-908), and raised again in Appellant's Motion for Rehearing (R. 928-941). The trial court ruled on the issue in the Final Judgment, holding the Trust unambiguous and Rebecca not bound as a successor or assign (R. 911, 914), and expressly ruled on it again in its Order Denying Plaintiff's Motion for Rehearing (R. 951-952). The applicable standard of review is de novo. *Taulbee v. Kozel*, 354 So. 3d 618, 619 (Fla. 3d DCA 2023).

Issue II. The issue whether, if the Trust is deemed ambiguous, the extrinsic evidence introduced at trial establishes that the Settlors intended the Restriction to bind Daniel and his successors and assigns was raised through the trial testimony of the Trust's drafter (R. 856-857 (Admitted Ex. U, Griffith Dep. 64:7-65:3)) and argued in Appellant's Motion for Rehearing (R. 928-941). The trial court ruled on the issue by finding the Trust's terms unambiguous in the Final

Judgment (R. 911, 914) and by rejecting the ambiguity argument in its Order Denying Plaintiff's Motion for Rehearing (R. 951-952). The applicable standard of review is de novo as to whether the Trust is ambiguous and its resulting construction; any subordinate findings of fact drawn from the extrinsic evidence are reviewed for competent, substantial evidence. *Giller v. Grossman*, 327 So. 3d 391, 393 (Fla. 3d DCA 2021); *Taulbee v. Kozel*, 354 So. 3d 618, 619 (Fla. 3d DCA 2023).

Issue III. The issue whether the Trust grants Glenda an enforceable possessory right - a covenant running with the land or a vested determinable life estate enforceable against Rebecca - was raised in the First Amended Complaint (Counts I and V) (R. 67-113), discussed in Appellant's Trial Memorandum of Law (R. 896-908), argued at trial (T. 188-207), and raised again in Appellant's Motion for Rehearing (R. 928-941). The trial court resolved the issue against Glenda in the Final Judgment (R. 911, 914) and expressly addressed and rejected the covenant-running-with-the-land and life-estate arguments in its Order Denying Plaintiff's Motion for Rehearing (R. 951-952). The applicable standard of review is de novo, as the legal

characterization of the interest the Trust confers presents a question of law. *Giller v. Grossman*, 327 So. 3d 391, 393 (Fla. 3d DCA 2021); *Gumberg v. Gumberg*, 755 So. 2d 710, 712 (Fla. 4th DCA 1999).

ARGUMENT

Standard of Review

The interpretation of the Trust is a question of law reviewed de novo. *Jackson v. Shakespeare Found., Inc.*, 108 So. 3d 587, 593 (Fla. 2013). This Court applies that de novo standard to the construction of the trust instrument and the final judgment resting on it. *Johnson as Tr. of Doris Linda Trapnell Living Tr. v. Wolter*, 425 So. 3d 746, 747 (Fla. 6th DCA 2025). This appeal concerns the trial court's interpretation of the restriction in Article II(B)(3) of the Trust, which distributed the Property outright to Daniel subject to the requirement that Glenda and/or Azelya be allowed to continue to operate a beauty salon or similar business, rent-free, on the portion of the Property. Accordingly, this Court's standard of review is de novo.

I. Read as a Whole, the Trust Makes Glenda's Right to Operate a Beauty Salon Binding upon Daniel and His Successors and Assigns, Including Rebecca.

The first issue is whether the Trust, read as a whole, makes Glenda's right to operate a beauty salon binding not only on Daniel but on his successors and assigns, including Rebecca. The trial court never answered that question.

To answer it now, the Settlors' intentions must be ascertained, if possible, from that which lies within the four corners of the Trust itself. *Knauer v. Barnett*, 360 So. 2d 399, 405 (Fla. 1978).

The mere fact that the parties ascribe different meanings to the language does not create an ambiguity. *Bryan v. Dethlefs*, 959 So. 2d 314, 317 n.2 (Fla. 3d DCA 2007).

Where an instrument's terms are clear and unambiguous, the language itself is the best evidence of that intent. *Crawford v. Barker*, 64 So. 3d 1246, 1255 (Fla. 2011).

The Court reviews the entire instrument as a whole and according to its plain language, *Pial Holdings, Ltd. v. Riverfront Plaza, LLC*, 379 So. 3d 547, 551 (Fla. 6th DCA 2024), gives effect to all of its provisions, and does not construe it so as to render any provision meaningless, *Grovehurst Homeowners Ass'n, Inc. v. Stone Crest Master Ass'n, Inc.*, 365 So. 3d 1282, 1285 (Fla. 6th DCA 2023). A construction that leads to an absurd result cannot stand. *Inter-Ocean Cas. Co. v. Hunt*, 189 So. 240, 243 (Fla. 1939).

Read as a whole, the Trust manifests the Settlors' intention to bind not only Daniel but those who followed his ownership. The Trust supplies an enforcement mechanism — a notice to cure — directed expressly at Daniel's successors and assigns. The notice-and-cure provision would serve no purpose unless the person to be noticed owed a duty to cure, and it extends by its terms to "JOSUE DANIEL GONZALEZ, or his successors or assigns." (R. 715-716 (Admitted Ex. A, Trust Agreement, Art. II(B)(3)).)

Giving effect to that language, as the Court must, the only coherent reading is that the restriction was intended to run with the land and bind those who succeed Daniel in ownership; a right enforceable against a successor who owed no obligation would be a nullity, and the successors-or-assigns clause cannot be read out of the instrument. *Grovehurst*, 365 So. 3d at 1285; *Inter-Ocean*, 189 So. at 243.

Nor can the opening phrase "as long as he shall own the real property" be read to let Daniel extinguish Glenda's right at will by deeding the Property to his wife. Clearly, this language applies the restriction to Daniel for as long as he owns the Property, but it does

not in any way contradict or negate Glenda's rights against his successors. Such a reading of the Trust would render meaningless the language allowing Glenda to demand that a successor cure a breach.

Further, such a reading would cherry-pick favored provisions without construing all provisions harmoniously. The cherry-picking of favored terms, while ignoring other inharmonious terms, are forbidden by controlling authority. *Inter-Ocean*, 189 So. at 243; *Grovehurst*, 365 So. 3d at 1285.

Therefore, read as a whole, the Trust makes Glenda's right to operate her beauty salon binding on Daniel and his successors and assigns, including Rebecca.

II. Should the Trust Be Deemed Ambiguous and Subject to More Than One Interpretation, the Extrinsic Evidence Introduced at Trial Must Be Considered, and It Establishes That the Settlors Intended the Restriction to Bind Daniel and His Successors and Assigns.

Should the Trust be deemed ambiguous and subject to multiple interpretations, the extrinsic evidence introduced at trial establishes beyond peradventure that the Settlors intended the Restriction to bind Daniel and his successors and assigns.

The drafter of the Trust, Lynn Griffith, Esq., testified that the Settlors intended there was no limitation on Glenda's right regardless of who owned the Property. (Admitted Ex. U, Griffith Dep. 64:7-13 (R. 856).) This extrinsic evidence introduced at trial uniformly establishes that the Settlors intended the Restriction to bind Daniel's successors and assigns:

> That would be the intent. I mean, that's how it's drafted.

Admitted Ex. U, Griffith Dep. 24:3-15 (R. 816) (testifying that the words "successors and assigns" meant that if Daniel conveyed or assigned the Property, Glenda could serve the notice of breach on the assignee to enforce her rights).

> [The right of occupancy] wasn't personal to Daniel, it was personal to Daniel or his descendants at the very least . . . [and would] apply to he [sic] as well as his descendents. [sic] Admitted Ex. U, Griffith Dep. 60:6-17 (R. 852).

Griffith further testified that nothing in the Trust allowed Daniel to terminate the right by gratuitously transferring the Property to his wife — a non-starter — because he received it subject to that restriction, and that the restriction was intended to be enforceable "[t]hroughout her lifetime, regardless of who the owner was." Admitted Ex. U, Griffith Dep. 22:14-23:10 (R. 814-815). It is undisputed that the Settlors told their attorney they intended the

covenant to bind successors, and the Trust was drafted to reflect that intention.

Accordingly, should this Court deem the Trust subject to multiple interpretations, its drafter testified to exactly what the Settlors wanted, and all of the extrinsic evidence confirms the Settlors' intent that the Restriction bind Daniel and his successors and assigns. *Knauer*, 360 So. 2d at 405; *Minassian v. Rachins*, 152 So. 3d 719, 725 (Fla. 4th DCA 2014).

III. The Trust Grants Glenda an Enforceable Possessory Right — a Covenant Running with the Land or a Vested Determinable Life Estate — That Is Enforceable Against Rebecca.

Having determined the Settlors' intent, the third issue is whether the Settlors were authorized by law to place a restriction on a future transfer of the Property that would bind the transferee to Glenda's use. Florida law recognizes two means by which an instrument may confer a possessory right that binds successors in title: a covenant running with the land, *Hayslip v. U.S. Home Corp.*, 336 So. 3d 207, 209 (Fla. 2022), and a determinable life estate, *Anemaet v. Martin-Senour Co.*, 114 So. 2d 23, 25-26 (Fla. 2d DCA

1959). These recognized rights in real property are both applicable here and will be discussed below.

A. The Restriction Is a Covenant That Runs with the Land, and All Three Elements Are Met.

Covenants divide into two classes: real covenants, which run with the land and bind the heirs and assigns of the covenanting parties, and personal covenants, which bind only the covenanting parties. *Palm Beach Cnty. v. Cove Club Invs. Ltd.*, 734 So. 2d 379, 382 n.4 (Fla. 1999); *see also Caulk v. Orange Cnty.*, 661 So. 2d 932, 933 (Fla. 5th DCA 1995). Three conditions create a covenant running with the land:

> (1) the existence of a covenant that touches and involves the land; (2) an intention that the covenant run with the land; and (3) notice of the restriction on the part of the party against whom enforcement is sought.
>
> *Hayslip v. U.S. Home Corp.*, 336 So. 3d 207, 209 (Fla. 2022).

Because real covenants bind the heirs and assigns of the covenantor, the covenant binds Rebecca. *Hayslip*, 336 So. 3d at 209; *Palm Beach Cnty.*, 734 So. 2d at 382 n.4.

First element — touch and concern. A covenant touches and concerns the land where its performance "affect[s] the mode of

enjoyment of the premises." *Hayslip*, 336 So. 3d at 210. Article II(B)(3) grants Glenda and Azelya the right to occupy and operate a beauty salon on a defined portion of the Property; the right to enter and occupy plainly concerns the land. In *Hayslip*, the Supreme Court held that an arbitration provision touched and concerned the land because it affected the occupation and enjoyment of the home. *Hayslip*, 336 So. 3d at 210. A physical right of occupancy touches and concerns the land at least as much as an arbitration clause: if an arbitration provision runs with the land, a right to occupy and operate a salon on the premises necessarily does.

Second element — intent to run. The Trust directs the notice to cure to Daniel's successors and assigns — a provision that would serve no purpose unless those successors bore a duty, and which the Court must give effect rather than read out of the instrument. *Grovehurst*, 365 So. 3d at 1285. The drafter confirmed the intent:

> [The restriction was intended to be enforceable] [t]hroughout her lifetime, regardless of who the owner was.
>
> Admitted Ex. U, Griffith Dep. 22:14-23:10 (R. 814-815).

The Settlors told their attorney they intended the covenant to bind successors, and the Trust was drafted to reflect that intention.

Third element — notice. Rebecca had actual notice of Glenda's use. She admitted she knew that Glenda was operating a beauty salon on the Property when Daniel transferred it to her, and she knew of the very dispute over Glenda's right to remain. (T. 156, 160; T. 164-166.) A covenant that runs with the land binds the owner regardless of knowledge, and one who is not bound by a running covenant is nonetheless bound if she took with notice. *Hagan v. Sabal Palms, Inc.*, 186 So. 2d 302, 310-12 (Fla. 2d DCA 1966). On this record, Rebecca had at least such notice of the Covenant.

Because the Covenant touches and concerns the land, the Settlors intended it to run, and Rebecca took with notice, the Restriction runs with the land and binds Rebecca.

B. The Restriction Is a Vested Determinable Life Estate Binding on Rebecca.

Glenda also holds a vested property right because the Trust granted her a vested determinable life estate.

No particular words are needed to create a life estate; the only requirement is that the instrument, read as a whole, clearly manifest the intention to create one. *Anemaet v. Martin-Senour Co.*, 114 So. 2d 23, 25-26 (Fla. 2d DCA 1959). An estate is "determinable" when the words limit its continuation to the period preceding a stated event, so that the estate expires automatically upon the occurrence of that event. *Richardson v. Holman*, 33 So. 2d 641, 643 (Fla. 1948).

The words "for so long as" create exactly such a limitation on duration. *Burdine v. Sewell*, 109 So. 648, 653 (Fla. 1926). Life estates are vested estates in land, and a life tenant is generally prohibited only from committing waste. *Sauls v. Crosby*, 258 So. 2d 326, 327-28 (Fla. 1st DCA 1972).

A "vested" life estate and a "determinable" life estate are not competing labels: Glenda's estate is presently fixed in her (it is not contingent on any condition precedent), and it is subject to automatic termination upon a stated event (her death or her ceasing to operate the beauty salon). It is, in a single phrase, a vested determinable life estate.

The grant here fits that mold. The Trust granted Glenda the use "for as long as she should continue to operate a beauty salon or similar business." (R. 715-716 (Admitted Ex. A, Trust Agreement, Art. II(B)(3)).) The drafter confirmed that the Settlors intended Glenda to use the salon until she chose to stop, with her right terminating only upon abandonment. Admitted Ex. U, Griffith Dep. 22:14-23:10 (R. 814-815). Although the words "life estate" do not appear in the Trust, the instrument as a whole clearly manifests the intention to create one. *Anemaet*, 114 So. 2d at 25-26.

Because Glenda holds a vested determinable life estate, the remainder held by Daniel remained in abeyance and would not become possessory until the life estate terminated upon Glenda's death or abandonment of the Property. *Arnold v. Wells*, 131 So. 400, 404 (Fla. 1930). A grantor conveys no more than he holds. *Losey v. Losey*, 221 So. 2d 417, 418 (Fla. 1969). Daniel could, and did, transfer only a remainder subject to Glenda's vested determinable life estate; Rebecca accordingly received the Property subject to that estate and is bound by it.

CONCLUSION

For the foregoing reasons, Appellant Glenda Gonzalez respectfully requests that this Court REVERSE the Final Judgment entered for Appellees and REMAND with directions to enter judgment recognizing that the restriction in Article II(B)(3) of the Trust binds the Property in Rebecca Gonzalez's hands as Daniel's successor in interest and assign - as a covenant running with the land of which Rebecca had notice, or as a vested determinable life estate - and that Glenda and Azelya are entitled to continue operating their beauty salon, rent-free, on the Property as against Rebecca. Appellant further requests that this Court grant such other and further relief as the Court deems just and proper, including a determination of entitlement to attorney's fees under section 736.1004, Florida Statutes.

Respectfully submitted,

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing was served on all counsel of record through the Florida Courts E-Filing Portal on this 14th day of October, 2026.

/s/ Devin J. Mace

Devin J. Mace, Esq.

CERTIFICATE OF COMPLIANCE

I HEREBY CERTIFY that this brief complies with the font and word-count requirements of Florida Rules of Appellate Procedure 9.045(b) and Florida Rule of Appellate Procedure 9.210(a)(2)(B). This brief is submitted in Bookman Old Style 14-point font and contains fewer than 13,000 words, excluding the parts exempted by Florida Rule of Appellate Procedure 9.210(a)(2)(E).

/s/ Devin J. Mace

Devin J. Mace, Esq.